

ADVOCATE AI — LEGAL KNOWLEDGE BASE

Indian Law: Rules, Daras & Case Strategies

This document is the sole knowledge source for the Advocate RAG AI Model. It covers Indian Penal Code (IPC), Civil Procedure Code (CPC), Criminal Procedure Code (CrPC), Constitutional Law, Family Law, Property Law, Consumer Protection, Cyber Law, Labour Law, and case counter-strategies.

Jurisdiction: Republic of India | **Primary Acts:** IPC 1860, CrPC 1973, CPC 1908, Constitution 1950, BNS 2023

1. CONSTITUTIONAL LAW — FUNDAMENTAL RIGHTS

1.1 Article 14 — Right to Equality

RULE: The State shall not deny to any person equality before the law or the equal protection of the laws within the territory of India.

Article 14 prohibits class legislation but permits reasonable classification. The twin tests are: (a) intelligible differentia, and (b) rational nexus with the object.

Key Case: E.P. Royappa v. State of Tamil Nadu (1974) — Equality is a dynamic concept; arbitrariness violates Article 14.

COUNTER: If the opposing party claims differential treatment is valid, challenge under the arbitrariness doctrine established in Maneka Gandhi v. Union of India (1978).

SOLUTION: File a Writ Petition under Article 226 (High Court) or Article 32 (Supreme Court) challenging the arbitrary state action.

1.2 Article 19 — Freedom of Speech & Expression

RULE: All citizens shall have the right to freedom of speech and expression, but reasonable restrictions can be imposed under Article 19(2) on grounds of sovereignty, security, public order, decency, or morality.

Restrictions must satisfy: (a) they must be 'reasonable', (b) they must fall within the eight grounds listed in Article 19(2).

COUNTER: If speech is restricted citing public order, challenge using Superintendent, Central Prison v. Ram Manohar Lohia (1960) — mere tendency to disturb public order is insufficient; there must be proximate and direct nexus.

SOLUTION: Apply for anticipatory bail under Section 438 CrPC if arrest is threatened. File Writ for protection of fundamental rights.

1.3 Article 21 — Right to Life and Personal Liberty

RULE: No person shall be deprived of his life or personal liberty except according to procedure established by law.

Post Maneka Gandhi (1978), procedure must be fair, just, and reasonable — not merely a procedure prescribed by statute.

Article 21 includes: right to privacy (K.S. Puttaswamy, 2017), right to health, right to education, right to livelihood, right against solitary confinement.

COUNTER: If the state justifies detention citing a statute, challenge the statute itself as violating Article 21 if the procedure is harsh, arbitrary, or unjust.

SOLUTION: Invoke Habeas Corpus (Article 226/32) for illegal detention. Cite D.K. Basu v. State of West Bengal (1997) guidelines for arrest procedures.

2. CRIMINAL LAW — IPC 1860 / BHARATIYA NYAYA SANHITA (BNS) 2023

2.1 Section 302 IPC / Section 101 BNS — Murder

RULE: Whoever commits murder shall be punished with death, or imprisonment for life, and shall also be liable to fine.

Murder under Section 300 IPC requires: (a) intention to cause death, (b) intention to cause bodily injury likely to cause death, (c) knowledge that the act is imminently dangerous.

Exceptions to Murder (Section 300 IPC): Grave and sudden provocation, exceeding right of private defence, act of public servant, sudden fight, consent of victim.

COUNTER: Argue Section 304 (Culpable Homicide Not Amounting to Murder) if death was not premeditated. Distinguish *K.M. Nanavati v. State of Maharashtra* (1962) — provocation must be grave and sudden, not premeditated.

SOLUTION: Examine FIR for procedural lapses. Challenge chain of evidence. Seek bail under Section 439 CrPC if charge is Section 304 IPC. Invoke last seen theory challenge if no direct evidence.

2.2 Section 376 IPC / Section 63 BNS — Rape

RULE: Whoever commits rape shall be punished with rigorous imprisonment of not less than 10 years, extendable to life imprisonment, and fine.

Consent is the cornerstone of Section 375 IPC. Consent means unequivocal voluntary agreement. Passive submission does not constitute consent — *Mahmood Farooqui v. State* (NCT of Delhi), 2017.

POCSO Act 2012 applies when victim is below 18 years. Strict liability; consent of minor is irrelevant.

COUNTER: For defence: Challenge medical evidence (FSL report, DNA), examine delay in filing FIR, cross-examine inconsistencies in victim's statement under Section 164 CrPC. Cite *Tukaram v. State of Maharashtra* for consent analysis.

SOLUTION: For complainant: Ensure Section 164 statement is recorded before Magistrate. Medical examination within 72 hours. Victim cannot be subjected to two-finger test — *Lillu v. State of Haryana* (2013).

2.3 Section 420 IPC / Section 316 BNS — Cheating

RULE: Whoever cheats and thereby dishonestly induces the person deceived to deliver any property, or to make, alter, or destroy any valuable security, shall be punished with imprisonment up to 7 years and fine.

Essential ingredients: (a) deception, (b) fraudulent or dishonest inducement, (c) delivery of property or alteration of valuable security.

COUNTER: Argue that the dispute is purely civil in nature — a breach of contract does not automatically constitute cheating. Cite *Hridaya Ranjan Prasad Verma v. State of Bihar* (2000): mere breach of promise without fraudulent intent at inception is not cheating.

SOLUTION: File FIR under Section 420 IPC. Attach property under Section 83 CrPC. Simultaneously file civil suit for recovery of money with interest.

2.4 Section 498A IPC / Section 85 BNS — Cruelty by Husband

RULE: Whoever, being the husband or relative of the husband of a woman, subjects her to cruelty shall be punished with imprisonment up to 3 years and fine.

Cruelty includes: (a) wilful conduct causing grave injury or danger to life, limb, or health, (b) harassment to coerce unlawful demands for dowry.

COUNTER: Counter-strategy for accused: Cite *Arnesh Kumar v. State of Bihar* (2014) — police cannot arrest without checklist compliance for offences punishable up to 7 years. Challenge omnibus allegations. Seek anticipatory bail under Section 438 CrPC.

SOLUTION: For complainant: File under Section 498A IPC + Section 3/4 Dowry Prohibition Act + Section 12 Protection of Women from Domestic Violence Act 2005 for comprehensive relief.

3. CIVIL PROCEDURE CODE (CPC) 1908 — KEY PROVISIONS

3.1 Order 39 Rule 1 & 2 — Temporary Injunction

RULE: The Court may grant a temporary injunction to restrain a party from committing an act that would cause irreparable injury or where the property in dispute is likely to be wasted, damaged, or alienated.

Three-fold test for injunction (American Cyanamid principle adopted in India): (a) Prima facie case, (b) Balance of convenience, (c) Irreparable injury.

COUNTER: To oppose an injunction: Argue that plaintiff has an adequate remedy in damages (monetary compensation). Show that the balance of convenience favours the defendant. Cite delay in filing (laches).

SOLUTION: To obtain injunction: File application with affidavit. Show urgency for ex-parte order. Furnish undertaking as to damages. Cite Dalpat Kumar v. Prahlad Singh (1992) SC guidelines.

3.2 Section 9 CPC — Jurisdiction of Civil Courts

RULE: The courts shall have jurisdiction to try all suits of a civil nature excepting suits of which their cognizance is expressly or impliedly barred.

Jurisdiction types: (a) Territorial, (b) Pecuniary, (c) Subject matter. A decree passed without jurisdiction is a nullity.

COUNTER: Raise jurisdictional objection at the earliest opportunity under Order 7 Rule 11 CPC for rejection of plaint. A jurisdictional defect cannot be cured by consent of parties in subject-matter jurisdiction.

SOLUTION: Check pecuniary limits: District Court (up to Rs. 20 lakhs in most states), High Court (above Rs. 20 lakhs). File in court of proper jurisdiction to avoid dismissal.

3.3 Order 6 Rule 17 — Amendment of Pleadings

RULE: The Court may at any stage of the proceedings allow either party to alter or amend his pleadings in such manner and on such terms as may be just.

Post-commencement of trial, amendment allowed only if: (a) despite due diligence, the party could not have raised the matter before, (b) the amendment is necessary for determination of real controversy.

COUNTER: Oppose amendment if it introduces a new cause of action after limitation period, or if it changes the nature of the suit fundamentally. Cite Rajkumar Gurawara v. S.K. Sarwagi (2008).

SOLUTION: Apply for amendment at earliest. Delay weakens the application. Pay requisite court fees on amended claim. Cite Chander Kanta Bansal v. Rajinder Singh Anand (2008).

4. FAMILY LAW — MARRIAGE, DIVORCE & MAINTENANCE

4.1 Hindu Marriage Act 1955 — Section 13 Divorce

RULE: A marriage may be dissolved by a decree of divorce on grounds including: adultery, cruelty, desertion (2 years), conversion, unsoundness of mind, leprosy, venereal disease, renunciation, presumption of death.

Irretrievable breakdown of marriage is NOT a statutory ground under HMA 1955 but the Supreme Court in *Shilpa Sailesh v. Varun Sreenivasan* (2023) held it can exercise power under Article 142 to dissolve marriage.

COUNTER: Oppose divorce petition on cruelty grounds: Show that isolated incidents do not constitute cruelty. Cite *Samar Ghosh v. Jaya Ghosh* (2007) — comprehensive list of what constitutes mental cruelty.

SOLUTION: For mutual consent divorce under Section 13B: File joint petition, first motion, wait 6 months (waivable by SC after *Amardeep Singh*, 2017), then second motion. Fastest route to divorce.

4.2 Section 125 CrPC / Section 144 BNSS — Maintenance

RULE: If any person having sufficient means neglects or refuses to maintain his wife, legitimate/illegitimate minor child, or parents, a Magistrate may order maintenance up to such monthly amount as the Magistrate deems fit.

Section 125 is a secular provision applicable to all religions. Wife includes divorced wife until remarriage. Monthly maintenance is interim until final disposal.

The Supreme Court in *Rajnish v. Neha* (2020) issued comprehensive guidelines: (a) disclosure of assets mandatory, (b) uniform format for affidavit of assets, (c) criteria for quantum of maintenance.

COUNTER: For respondent: Show wife is earning sufficiently or has refused cohabitation without reasonable cause. Prove wife is living in adultery — maintenance stops under Section 125(4) CrPC.

SOLUTION: For wife: File Section 125 CrPC for urgent interim maintenance. Simultaneously file under Section 24 HMA for pendente lite maintenance and litigation expenses. File DV Act Section 20 for monetary relief.

4.3 Muslim Personal Law — Triple Talaq

RULE: The Muslim Women (Protection of Rights on Marriage) Act 2019 declares instant triple talaq (talaq-e-biddat) void and illegal. Husband pronouncing triple talaq is liable for imprisonment up to 3 years and fine.

The Act was passed after *Shayara Bano v. Union of India* (2017) where the Supreme Court (3:2 majority) declared triple talaq unconstitutional.

COUNTER: Defence: Argue the talaq pronounced was talaq-e-ahsan (single pronouncement during tuhr) or talaq-e-hasan (three pronouncements in successive tuhrs) — both are still valid. Triple Talaq Act only targets talaq-e-biddat.

SOLUTION: For wife: File complaint under Triple Talaq Act 2019. Apply for custody of minor children under Guardians and Wards Act. Claim mahr and maintenance during iddat period.

5. PROPERTY LAW — TRANSFER OF PROPERTY ACT 1882

5.1 Section 54 TPA — Sale of Immovable Property

RULE: Sale is a transfer of ownership in exchange for a price paid or promised. A sale of immovable property of value Rs. 100 and upwards can only be made by a registered instrument.

Essential elements of a valid sale: (a) competent parties, (b) subject matter must be transferable, (c) price must be paid/promised, (d) registration compulsory for property above Rs. 100.

COUNTER: Challenge sale on grounds: (a) seller had no title (*nemo dat quod non habet*), (b) sale without registration is void, (c) seller was a minor or of unsound mind, (d) fraud or misrepresentation under Section 17 Contract Act.

SOLUTION: Conduct due diligence: Encumbrance Certificate (last 30 years), title search, check for prior mortgages, verify mutations in revenue records. Register sale deed within 4 months of execution.

5.2 Section 58 TPA — Mortgage

RULE: A mortgage is the transfer of an interest in specific immovable property for the purpose of securing the payment of money advanced or to be advanced by way of loan.

Types: Simple mortgage, Mortgage by conditional sale, Usufructuary mortgage, English mortgage, Mortgage by deposit of title deeds (equitable mortgage), Anomalous mortgage.

COUNTER: For mortgagor in default: Invoke right of redemption (Section 60 TPA) — 'once a mortgage, always a mortgage'. The right of redemption cannot be clogged. Cite *Pomal Kanji Govindji v. Vrajilal Karsandas Purohit* (1989).

SOLUTION: For mortgagee: File suit for foreclosure (Section 67 TPA) or sale (Order 34 CPC). For equitable mortgage, file summary suit under Order 37 CPC for recovery with interest.

5.3 Adverse Possession — Section 27 Limitation Act

RULE: At the determination of the period hereby limited to any person for instituting a suit for possession of any property, his right to such property shall be extinguished.

Period for adverse possession of immovable property: 12 years (private property), 30 years (government property). Possession must be: open, continuous, hostile, actual, and exclusive.

COUNTER: To defeat adverse possession claim: Show possession was with permission (permissive possession cannot ripen into adverse possession). Produce rent receipts, licence agreements. Any acknowledgement of owner's title resets the clock.

SOLUTION: To claim adverse possession: Prove possession for requisite period with evidence — electricity bills, tax receipts, municipal records, witness testimony. File suit for declaration of title based on adverse possession.

6. CONSUMER PROTECTION ACT 2019

6.1 Jurisdiction & Pecuniary Limits

District Commission: Claims up to Rs. 1 crore. State Commission: Rs. 1 crore to Rs. 10 crores. National Commission: Above Rs. 10 crores.

Complaint can be filed where: (a) opposite party resides/carries on business, (b) cause of action arose, (c) complainant resides (new provision under 2019 Act).

RULE: Deficiency in service means any fault, imperfection, shortcoming, or inadequacy in quality, nature, and manner of performance as required by law or contract.

COUNTER: For opposite party: Raise objection on maintainability (complainant not a 'consumer'), territorial jurisdiction, or that dispute is commercial in nature (B2B excluded). Cite limitation — complaint within 2 years of cause of action.

SOLUTION: For consumer: File complaint with supporting documents — bills, warranty cards, correspondence. Claim compensation, replacement, refund, and cost of litigation. Mediation mandatory under 2019 Act before adjudication.

6.2 Product Liability — Chapter VI

RULE: A product manufacturer/seller/service provider shall be liable for compensation if the product contains a manufacturing defect, design defect, or deviation from express warranty causing harm to the consumer.

Product liability action can be brought even without privity of contract. Strict liability applies for manufacturing defects.

COUNTER: Defences available: (a) product was misused by consumer, (b) consumer was aware of product danger, (c) product tampered after sale, (d) defect arose from compliance with mandatory government standards.

SOLUTION: Collect evidence: product sample, purchase invoice, medical reports if injury caused, expert opinion on defect. File complaint before appropriate Commission. Pray for compensation including mental agony and litigation costs.

7. CYBER LAW — INFORMATION TECHNOLOGY ACT 2000

7.1 Section 66 IT Act — Computer Related Offences

RULE: If any person dishonestly or fraudulently does any act referred to in Section 43 (damage to computer), he shall be punishable with imprisonment up to 3 years or fine up to Rs. 5 lakhs or both.

Section 43 covers: unauthorised access, downloading/copying data, introducing viruses, damage to computer, denial of service attacks, stealing passwords.

COUNTER: Challenge under Section 66: Show lack of mens rea (dishonest or fraudulent intent). Digital evidence must comply with Section 65B Indian Evidence Act (now Section 63 BSA 2023) — certificate mandatory for electronic records.

SOLUTION: File cyber crime complaint at cybercrime.gov.in or local cyber crime cell. Preserve digital evidence — screenshots, emails, logs. Report to CERT-In for critical infrastructure attacks.

7.2 Section 66A IT Act — Struck Down

Section 66A IT Act (punishment for offensive online messages) was struck down by the Supreme Court in *Shreya Singhal v. Union of India* (2015) as unconstitutional for violating Article 19(1)(a) — freedom of speech.

RULE: IMPORTANT: Section 66A is no longer law. Any FIR registered under Section 66A is illegal. Police cannot arrest under this provision.

COUNTER: If FIR is registered under Section 66A: File Writ Petition immediately citing *Shreya Singhal*. Seek quashing of FIR under Section 528 BNSS (Section 482 CrPC). Claim compensation for illegal arrest.

SOLUTION: Alternative provisions for online harassment: Section 67 IT Act (obscene material online), Section 354D IPC/Section 78 BNS (cyberstalking), Section 507 IPC (criminal intimidation by anonymous communication).

7.3 Section 43A IT Act — Data Protection

RULE: Where a body corporate possessing, dealing, or handling sensitive personal data is negligent in implementing reasonable security practices causing wrongful loss or gain to any person, it shall be liable to pay damages.

Sensitive personal data includes: passwords, financial information, health data, sexual orientation, biometric data.

SOLUTION: For data breach victims: File complaint with Adjudicating Officer under IT Act. With Digital Personal Data Protection Act 2023 in force, file complaint before Data Protection Board. Claim compensation for damages.

8. LABOUR LAW — KEY PROVISIONS

8.1 Industrial Disputes Act 1947 — Wrongful Termination

RULE: No workman employed in any industry who has been in continuous service for not less than one year under an employer shall be retrenched without: (a) one month notice or pay in lieu, (b) retrenchment compensation at 15 days' average pay for every completed year, (c) prior permission from appropriate government (establishments with 100+ workers).

COUNTER: Employer's defence: Show termination was for misconduct (domestic enquiry conducted fairly). Distinguish retrenchment from dismissal. Cite Standing Orders. Show workman was not a 'workman' under IDA (managerial/supervisory staff excluded).

SOLUTION: For wrongfully terminated workman: File complaint before Labour Court under Section 2A IDA within 3 years. Seek reinstatement with full back wages. Alternatively, approach Labour Commissioner for conciliation.

8.2 Sexual Harassment at Workplace — POSH Act 2013

RULE: Every employer shall constitute an Internal Complaints Committee (ICC) at each office/branch with 10 or more employees. Aggrieved woman can file complaint within 3 months of the incident.

Sexual harassment includes: unwelcome sexual advances, requests for sexual favours, sexually coloured remarks, showing pornography, any other unwelcome physical, verbal, or non-verbal conduct.

COUNTER: For respondent: Challenge ICC composition (external member mandatory). Show complaint is time-barred. Prove allegations are false and malicious — complainant liable for action under Section 14 POSH Act.

SOLUTION: For complainant: File written complaint to ICC with all evidence. Request interim relief — transfer of respondent, leave during enquiry. Appeal to District Officer if dissatisfied with ICC order. File criminal complaint under Section 354 IPC simultaneously.

9. CRIMINAL PROCEDURE — BAIL, TRIAL & EVIDENCE

9.1 Bail — Sections 436, 437, 439 CrPC / BNSS 2023

RULE: Bailable offences: Bail is a matter of right under Section 436 CrPC. Non-bailable offences: Bail is discretionary under Section 437 (Magistrate) or Section 439 (Sessions Court/High Court).

Factors for bail in non-bailable offences: (a) nature and gravity of accusation, (b) antecedents of accused, (c) possibility of fleeing justice, (d) likelihood of tampering with evidence, (e) safety of the community.

Satender Kumar Antil v. CBI (2022): Supreme Court issued guidelines for bail — prolonged incarceration without trial violates Article 21. Courts must decide bail applications within specified timelines.

COUNTER: To oppose bail: Show accused is a flight risk (foreign travel history, no permanent address). Demonstrate threat to witnesses. Cite gravity of offence and prior criminal history. Produce evidence of tampering attempt.

SOLUTION: For bail application: Cite Sanjay Chandra v. CBI (2011) — bail is the rule, jail is the exception. Offer surety, surrender passport, mark presence at police station. File anticipatory bail under Section 438 CrPC if arrest apprehended.

9.2 Section 313 CrPC / Section 351 BNSS — Examination of Accused

RULE: For the purpose of enabling the accused personally to explain any circumstances appearing in the evidence against him, the Court shall question him after witnesses for prosecution have been examined.

Answers given under Section 313 cannot be used as confessions but can be used against the accused if inconsistent with the defence. Accused cannot be punished for refusing to answer.

COUNTER: Counsel must prepare accused thoroughly for Section 313 examination. Silence or evasive answers can be used to draw adverse inference. Deny each incriminating circumstance specifically.

SOLUTION: Use Section 313 as an opportunity to bring defence version on record. Ensure all prosecution evidence is specifically addressed. Any explanation not given at Section 313 stage cannot be raised later — Bhoo Singh v. State of Punjab.

9.3 Section 27 Indian Evidence Act / Section 23 BSA — Discovery from Accused

RULE: When any fact is deposed to as discovered in consequence of information received from a person accused of any offence, in the custody of a police officer, so much of such information, whether it amounts to a confession or not, as relates distinctly to the fact thereby discovered, may be proved.

Only the 'discovery' portion of the statement is admissible, not the entire confession. Discovery must be of a new fact not already known to police.

COUNTER: Challenge Section 27 evidence: Show recovery is a 'plant'. Challenge custody (accused must be in police custody). Argue police already had knowledge of the place — discovery must be of a new fact. Cite Pulukuri Kottaya v. Emperor (1947) — landmark Privy Council ruling.

SOLUTION: For prosecution: Ensure proper documentation of discovery panchnama. Two independent witnesses must be present. Photograph the scene. Ensure chain of custody of recovered article is unbroken.

10. LANDMARK CASES — QUICK REFERENCE

Case Name	Year	Key Principle
Kesavananda Bharati v. State of Kerala	1973	Basic Structure Doctrine — Parliament cannot amend Constitution to destroy
Maneka Gandhi v. Union of India	1978	Article 21 — procedure must be fair, just, reasonable; Articles 14, 19, 21 are
A.K. Gopalan v. State of Madras	1950	Overruled by Maneka Gandhi; earlier held each article operates in isolation
Vishaka v. State of Rajasthan	1997	Guidelines for prevention of sexual harassment at workplace (led to POSH A
M.C. Mehta v. Union of India	1986	Absolute liability for hazardous industry; no exceptions unlike strict liability
Olga Tellis v. Bombay Municipal Corporation	1985	Right to livelihood is part of Article 21 right to life
D.K. Basu v. State of West Bengal	1997	Mandatory guidelines for arrest and detention procedures
Indra Sawhney v. Union of India	1992	Mandal Commission; 50% cap on reservations; no reservation in promotions
S.R. Bommai v. Union of India	1994	President's Rule; floor test mandatory; federalism is basic structure
Shreya Singhal v. Union of India	2015	Section 66A IT Act unconstitutional; chilling effect on free speech
K.S. Puttaswamy v. Union of India	2017	Right to privacy is fundamental right under Article 21
Shayara Bano v. Union of India	2017	Triple talaq (talaq-e-biddat) unconstitutional
Arnesh Kumar v. State of Bihar	2014	Police checklist before arrest in Section 498A IPC cases
Satender Kumar Antil v. CBI	2022	Bail guidelines; prolonged undertrial detention violates Article 21
Rajnesh v. Neha	2020	Uniform guidelines and affidavit format for maintenance cases

11. COMMON CASE PROBLEMS & COUNTER-STRATEGIES

Problem: FIR filed with delay

Argue delayed FIR creates doubt on prosecution story. Cite *Thulia Kali v. State of Tamil Nadu* — delay in FIR must be properly explained. Unexplained delay weakens prosecution.

Problem: Single witness testimony

Under Section 134 Evidence Act, conviction can be based on single witness if testimony is reliable and trustworthy. Counter: cross-examine on inconsistencies, motive to falsely implicate.

Problem: Dying declaration

Dying declaration (Section 32(1) Evidence Act) can be sole basis of conviction. Counter: challenge competency of declaree, multiple inconsistent declarations, declaration made under influence.

Problem: Circumstantial evidence only

Five golden principles (Panchsheel) from *Sharad Birdhichand Sarda v. State of Maharashtra* (1984): circumstances fully established, consistent with guilt only, exclude innocence, chain must be complete, no gap.

Problem: Electronic evidence

Certificate under Section 65B IEA (Section 63 BSA 2023) mandatory. *Arjun Panditrao Khotkar v. Kailash Kushanrao* (2020) — certificate is condition precedent for admissibility.

Problem: Confession to police

Confession to police officer is inadmissible under Section 25 IEA. Only confession before Magistrate under Section 164 CrPC is admissible. Retraction of confession weakens but does not nullify it.

Problem: Expert witness

Expert opinion under Section 45 IEA is not conclusive. Court must apply its own reasoning. Cross-examine expert on qualifications, methodology, and basis of opinion.

Problem: Alibi defence

Burden of proving alibi is on accused under Section 103 IEA. But prosecution must first establish presence of accused at scene. Strong alibi with independent witnesses can create reasonable doubt.

12. IMPORTANT LEGAL PRINCIPLES (DARAS)

Nemo dat quod non habet: No one can give what they do not have. A seller cannot pass better title than they possess.

Audi alteram partem: Hear the other side. Natural justice requires that no person shall be condemned unheard.

Nemo iudex in causa sua: No one shall be a judge in their own cause. Rule against bias in natural justice.

Res judicata: A matter once adjudicated cannot be litigated again between same parties on same cause of action. (Section 11 CPC)

Res ipsa loquitur: The thing speaks for itself. In negligence cases, the accident itself is evidence of negligence.

Actus reus and Mens rea: Criminal liability requires both a guilty act (actus reus) and guilty mind (mens rea). Exception: strict liability offences.

In pari delicto: When both parties are equally at fault, the defendant's position is stronger. Courts will not assist either party.

Caveat emptor: Let the buyer beware. Buyer must verify goods before purchase. Modified by Consumer Protection Act.

Ubi jus ibi remedium: Where there is a right, there is a remedy. Every legal right has a corresponding legal remedy.

Ex turpi causa non oritur actio: No action arises from a disgraceful cause. Courts will not assist a claimant whose claim is based on illegal or immoral action.

Dura lex sed lex: The law is hard but it is the law. Hardship alone does not excuse non-compliance with law.

Ignorantia juris non excusat: Ignorance of the law is no excuse. Everyone is presumed to know the law.

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DISCLAIMER: This document is for AI RAG model training purposes. All legal provisions reflect Indian law as of 2024. For actual legal advice, consult a qualified advocate. Laws are subject to amendment and judicial interpretation.

Sources: Constitution of India, IPC 1860, BNS 2023, CrPC 1973, BNSS 2023, CPC 1908, TPA 1882, HMA 1955, IT Act 2000, Consumer Protection Act 2019, and Supreme Court of India judgments.